

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24 & 30				1. REQUISITION NUMBER F360516-26-2000028		PAGE 1 OF 44	
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 36C78626Q50127	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Anna Straley				b. TELEPHONE NUMBER (No collect calls)	
9. ISSUED BY NATIONAL CEMETERY ADMIN (786) NATIONAL CEMETERY ADMINISTRATION DEPT OF VETERANS AFFAIRS 18434 JOPLIN RD. TRIANGLE, VA 22172		CODE 36C786		10. THE ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 562991 SIZE STANDARD: \$9M			
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS 0 Days: 0.00 % 0 Days: 0.00 % 0 Days: 0.00 % 0 Days: 0.00 %		13a. THIS CONTRACT IS RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM – DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO		CODE		16. ADMINISTERED BY NATIONAL CEMETERY ADMIN (786) NATIONAL CEMETERY ADMINISTRATION DEPT OF VETERANS AFFAIRS 18434 JOPLIN RD. TRIANGLE, VA 22172			
17a. CONTRACTOR/OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY TUNGSTEN http://www.tungsten-network.com/customer-campaigns/veterans-affairs/	
TELEPHONE NUMBER		CODE		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES (Use Reverse and/or Attach Additional Sheets as Necessary)			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

Septic Services for Tahoma National Cemetery. Base year plus 1.

25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (For Government Use Only)			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☒ ARE ☐ ARE NOT ATTACHED ☐ ARE ☐ ARE NOT ATTACHED			
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5) INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF THE CONTRACTING OFFICER (TYPE OR PRINT) Ralph Crum		31c. DATE SIGNED	

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Prescribed by GSA - FAR (48 CFR) 53.212

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY <i>(Print)</i>		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT <i>(Location)</i>		
		42c. DATE REC'D <i>(YY/MM/DD)</i>		42d. TOTAL CONTAINERS

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F Deliveries or Performance.....	
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Section 1 - Continuation Sheet

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
0001	See Description Below PSC: R499 SUPPORT- PROFESSIONAL: OTHER	2.000000	EA			
Description: The Contractor shall perform pumping of the 1750-gallon septic tank at Site A and B semi-annually – 3 to 7 business days prior to Memorial Day and Veterans Day. Services shall be scheduled with the COR at least 10 working days in advance of the proposed service date.						
Period of Performance: 06/01/2026 - 05/31/2027						
Reference Line: F360516-26-2000028 - 0001						
Pricing Options: Base						
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
0002	See Description Below PSC: R499 SUPPORT- PROFESSIONAL: OTHER	6.000000	EA			
Description: The Contractor shall perform pumping of the 1000-gallon septic tank at Site C every other month on the first Wednesday. Services shall be confirmed with the COR in writing; at least 10 working days in advance of the service.						
Period of Performance: 06/01/2026 - 05/31/2027						
Reference Line: F360516-26-2000028 - 0002						
Pricing Options: Base 0002						
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
0003	See Description Below PSC: R499 SUPPORT- PROFESSIONAL: OTHER	1.000000	EA			
Description: The Contractor shall perform an inspection of the septic systems at sites A, B and C on an annual basis, during the pumping services performed by the contractor for Memorial Day. During this service the contractor shall also test the septic tank alarm system on the pump tanks as part of this inspection. Contractor shall report inspection findings to the COR within 3 business days.						
Period of Performance: 06/01/2026 - 05/31/2027						
Reference Line: F360516-26-2000028 - 0003						
Pricing Options: Base 0003						
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
10001	See Description Below PSC: R499	2.000000	EA			

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
	SUPPORT- PROFESSIONAL: OTHER					
	Description: The Contractor shall perform pumping of the 1750-gallon septic tank at Site A and B semi-annually – 3 to 7 business days prior to Memorial Day and Veterans Day. Services shall be scheduled with the COR at least 10 working days in advance of the proposed service date.					
	Period of Performance: 06/01/2027 - 05/31/2028					
	Reference Line: F360516-26-2000028 - 10001					
	Pricing Options: Option 0001					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
10002	See Description Below PSC: R499 SUPPORT- PROFESSIONAL: OTHER	6.000000	EA			
	Description: The Contractor shall perform pumping of the 1000-gallon septic tank at Site C every other month on the first Wednesday. Services shall be confirmed with the COR in writing, at least 10 working days in advance of the service.					
	Period of Performance: 06/01/2027 - 05/31/2028					
	Reference Line: F360516-26-2000028 - 10002					
	Pricing Options: Option 0002					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
10003	See Description Below PSC: R499 SUPPORT- PROFESSIONAL: OTHER	1.000000	EA			
	Description: The Contractor shall perform an inspection of the septic systems at sites A, B and C on an annual basis, during the pumping services performed by the contractor for Memorial Day. During this service the contractor shall also test the septic tank alarm system on the pump tanks as part of this inspection. Contractor shall report inspection findings to the COR within 3 business days.					
	Period of Performance: 06/01/2027 - 05/31/2028					
	Reference Line: F360516-26-2000028 - 10003					
	Pricing Options: Option 0003					

Statement of Work

Septic Pumping and Inspection Requirement

Tahoma National Cemetery

The National Cemetery Administration (NCA) honors veterans with a final resting place and Lasting memorials that commemorate their service to our Nation. The standards of appearance and procedures performed by the Contractor at Tahoma National Cemetery shall reflect the nation's concern for those buried here and exhibit absolute decorum, composure, and stability. The purpose of this Request is to retain septic pumping and inspection services for the Tahoma National Cemetery for 1 year.

1. Period of Performance

(Period of Performance is One (1) Year with a possible One (1) Option Year (If needed), due to the expansion of Tahoma National Cemetery and changes to the scope of Septic services that will be needed in Mid-2027 to 2028. A New Solicitation for Septic Services with a Five (5) Year Period of Performance will be published before completion of the expansion.)

- 2. Place of Performance:** The contractor shall provide materials, equipment, labor, and supervision necessary to perform septic pumping and inspection services at Tahoma National Cemetery, located at:

Tahoma National Cemetery

18600 SE 240th Street

Kent, WA 98042

3. Scope of Work

The contractor shall provide septic tank pumping and inspection services for three (3) existing septic tanks located at Tahoma National Cemetery. Services shall be performed in accordance with all applicable federal, state, and local health and environmental regulations and shall be limited to the design capacity of each tank.

3.1 Tank Locations and Capacities

Public Information Center (PIC) – Site A - 1750-gallons.

Administration Building – Site B - 1750-gallons.

Temporary Honor Guard Trailer – Site C - 1000-gallons.

3.2 The Contractor shall remove and dispose of all effluent, sewage, liquid, semi-liquid, solid waste matter, debris, trash, and/or any material from the Septic tanks. The Contractor shall clean up all spilled, dropped, and/or leaked materials including but not limited to sewage, water, chemicals, and grease; because of pumping and related activities inside and/or surrounding the pumping access area for the Septic Tanks.

3.3 The septic tanks at site A, B and C all have two access covers, while sites A and B also have an additional cover for the pump chamber. Access to the covers for servicing the tanks should not require any digging, possibly will require some turf removal that occasionally grows over the top between service calls (See photos below).

3.4 CLIN Structure

Contract Line-Item Number	Description	Quantity	Unit
0001	Pumping of the 1750-gallon septic tank at Site A and B semi-annually – 3 to 7 business days prior to Memorial Day and Veterans Day. Services shall be scheduled with the COR at least 10 working days in advance of the proposed service date.	2	JB
0002	Pumping of the 1000-gallon septic tank at Site C every other month on the first Wednesday. Services shall be confirmed with the COR in writing; at least 10 working days in advance of the service.	6	JB
0003	Inspection of the septic systems at sites A, B and C on an annual basis, during the pumping services performed by the contractor for Memorial Day. During this service the contractor shall also test the septic tank alarm system on the pump tanks as part of this inspection. Contractor shall report inspection findings to the COR within 3 business days.	1	JB

4. General Requirements

4.1 The contractor shall perform pumping and inspection services using properly licensed personnel and equipment.

4.2 Subcontracting of pumping services is not permitted without prior written approval from the Contracting Officer.

4.1. The Contractor shall ensure pumping volumes do not exceed the designed tank capacity and shall prevent over-pumping or unnecessary service.

- a. The Contractor shall be responsible for maintaining satisfactory standards of personnel conduct and work performance and shall administer disciplinary action as required. The Contractor is expected to remove any staff for cause. Should the Contractor fail to act in this regard, or the reason for removal is immediately required to protect the interests of the Government, the COR may request removal of contractor staff from the premises.

5. Pumping Requirements

- 5.1 Pumping shall be limited to removal of septic contents up to the design capacity of each tank.
- 5.2 The Contractor shall measure and document the volume removed from each tank at the site using calibrated equipment.
- 5.3 Pumping shall cease once the tank has been fully evacuated to normal operating levels.
- 5.4 Over-pumping beyond tank capacity or charging for volumes in excess of capacity is prohibited.

6. Inspection Requirements

At the time of pumping, the Contractor shall visually inspect each tank and note:

- 6.1 Tank condition and accessibility
- 6.2 Evidence of structural damage or leaks
- 6.3 Condition of inlet/outlet baffles (if visible)
- 6.4 Signs of improper operation or prior over-servicing

Findings shall be documented in a written inspection report

6.5 Measurement, Documentation and Verification

For each site, the Contractor shall provide:

- Date and time of service
- Tank location and capacity
- Volume pumped (in gallons)
- Method of volume measurement
- Disposal facility name and disposal receipt
- Name and license number of personnel performing the work

- All documentation shall be provided to the COR at Tahoma National Cemetery electronically within five (5) business days of service.

7. Environmental and Site Protection

- 7.1 The Contractor shall prevent spills, leaks, or contamination of cemetery grounds
- 7.2 Any damage to Government property resulting from Contractor operations shall be repaired at no cost to the Government.
- 7.3 The site shall be restored to its original condition upon completion.
- 7.4 When onsite, the Contractor shall assume sole responsibility for the safety of all persons on, or about, the work site in accordance with applicable laws and codes.
- 7.5 Contractor shall also guard all hazards in accordance with the safety provisions of the latest manual of accident prevention published by the Associated General Contractors of America and OSHA.

8. Government Oversight

The Government reserves the right to:

- 8.1 Observe pumping operations on site
- 8.2 Verify volume measurements
- 8.3 Reject services that exceed tank capacity or do not comply with this SOW.

9. Deliverables

- 9.1 Pumping and inspection report for each tank
- 9.2 Disposal Documentation
- 9.3 Volume Measurement Records

10 . Hours of Operation

The Contractor shall perform all services during normal business hours of Monday through Friday, 8:00am to 4:00pm (preferably early morning) and be accompanied by the Contracting Officer Representative (COR) or designated cemetery personnel.

The Contractor shall ensure continuous operations of septic systems during service operations. Services shall not interfere with other cemetery operations, such as burial services, grounds

maintenance, construction, etc.

11. Quality Assurance Surveillance Plan (QASP)

SOW Requirement	Performance Standard	Surveillance Method	Frequency	Acceptable Quality Level (AQL)
Proper Licensing and certification	Contractor and personnel possess all required state and local licenses and certifications	Document review	Prior to service and annually	100%
Authorized Personnel Only	Work performed by approved contractor personnel; no unauthorized subcontracting	On-site observation	Each service	100%
Pumping limited to tank capacity	Pumped volume does not exceed capacity of each tank	On-Site verification and document review	Each service	100%
Volume measurement and documentation	Pumped volume measured using calibrated equipment and documented	Report Review	Each service	100%
Inspection performance	Visual inspection conducted and findings documented	On-site observation	Each service	100%

Environmental Protection	No spills, leaks or contamination of grounds	On-site observation	Each service	100%
Site Restoration	Tanks access secured; site returned to pre-service condition	On-site observation	Each service	100%
Disposal Compliance	Waste disposed at approved facility with receipt provided	Document review	Each service	100%
Timely Submission of reports	Complete service documentation submitted within required timeframe	Document review	Each service	100%
Invoice accuracy	Invoiced quantities and charges align with tank capacity and service performed	Invoice Review	Each Invoice	100%

12. QUALITY CONTROL: The contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this SOW. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's quality control program is the means by which he assures himself that his work complies with the requirement of the contract. After acceptance of the quality control plan the contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system. Contractor shall submit quality control plan 10 days post award date to contracting officer and contracting officer representative.

13. QUALITY ASSURANCE: The government shall evaluate the contractor’s performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

END OF STATEMENT OF WORK

LIST OF EXHIBITS

Exhibit	Number of Pages
Exhibit A – Site Plan of Tahoma National Cemetery.....	1
Exhibit B – Site A.....	1
Exhibit C – Site B.....	1
Exhibit D – Site C	1

Exhibit A:

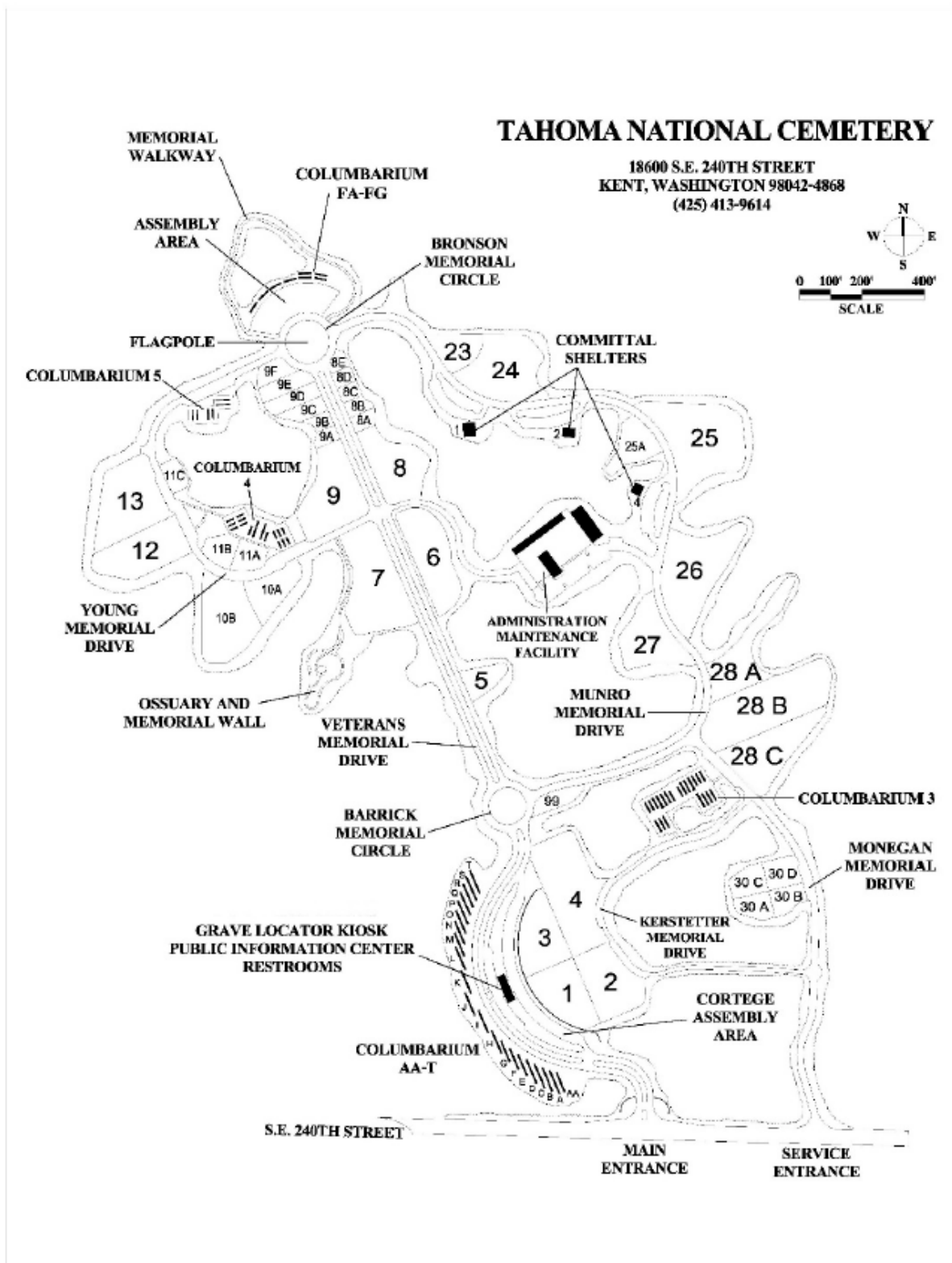


Exhibit B:



Exhibit C:



Exhibit C:



Section 2 - Contract Clauses**52.252-2 Clauses Incorporated by Reference (Feb 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/ these address(es):

www.acquisition.gov/browse/index/far (FAR)

www.va.gov/oal/library/vaar/index.asp (VAAR)

[Insert one or more Internet addresses]

(End of clause)

Deliveries or Performance

Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
0001/1		2.000000		TAHOMA NATIONAL CEMETERY (919) DEPT OF VETERANS AFFAIRS (919) TAHOMA NATIONAL CEMETERY 18600 SE 240TH STREET KENT, WA 98042
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
0002/1		6.000000		TAHOMA NATIONAL CEMETERY (919) DEPT OF VETERANS AFFAIRS (919) TAHOMA NATIONAL CEMETERY 18600 SE 240TH STREET KENT, WA 98042
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
0003/1		1.000000		TAHOMA NATIONAL CEMETERY (919) DEPT OF VETERANS AFFAIRS (919) TAHOMA NATIONAL CEMETERY 18600 SE 240TH STREET KENT, WA 98042
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
10001/1		2.000000		TAHOMA NATIONAL CEMETERY (919) DEPT OF VETERANS AFFAIRS (919) TAHOMA NATIONAL CEMETERY 18600 SE 240TH STREET KENT, WA 98042
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
10002/1		6.000000		TAHOMA NATIONAL CEMETERY (919) DEPT OF VETERANS AFFAIRS (919) TAHOMA NATIONAL CEMETERY 18600 SE 240TH STREET KENT, WA 98042
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
10003/1		1.000000		TAHOMA NATIONAL CEMETERY (919) DEPT OF VETERANS AFFAIRS (919) TAHOMA NATIONAL CEMETERY 18600 SE 240TH STREET KENT, WA 98042

PERIOD OF PERFORMANCE

ITEM	START	END
0001	06/01/2026	05/31/2027
0002	06/01/2026	05/31/2027
0003	06/01/2026	05/31/2027
10001	06/01/2027	05/31/2028

10002 06/01/2027 05/31/2028

10003 06/01/2027 05/31/2028

Clause	Title	Fill-ins
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)	
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)	
52.204-13 (DEV)	System for Award Management - Maintenance (OCT 2018) (DEVIATION NOV 2025)	
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)	
52.212-4 (DEV)	Contract Terms and Conditions-Commercial Products and Commercial Services (NOV 2023) (DEVIATION AUG 2025)	
52.217-8	Option to Extend Services (Nov 1999)	Period of Time: "15 days"
52.219-6 (DEV)	Notice of Total Small Business Set-Aside (NOV 2020) (DEVIATION NOV 2025)	
52.222-3 (DEV)	Convict Labor (JUN 2003) (DEVIATION NOV 2025)	
52.222-36 (DEV)	Equal Opportunity for Workers with Disabilities (JUN 2020) (DEVIATION NOV 2025)	
52.222-40 (DEV)	Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (DEVIATION NOV 2025)	
52.222-44 (DEV)	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (MAY 2014) (DEVIATION NOV 2025)	
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52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)	

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852.219-73 (DEV)	VA NOTICE OF TOTAL SET-ASIDE FOR CERTIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (NOV 2022) (DEVIATION JAN 2023)	BaseTerm: "X"
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)	
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)	

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days [*insert the period of time within which the Contracting Officer may exercise the option*]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days [*60 days unless a different number of days is inserted*] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 2 years and 6 months (months)(years).

(End of clause)

52.222-62 (DEV) Paid Sick Leave Under Executive Order 13706 (JAN 2022) (DEVIATION NOV 2025)

(a) *Definitions.* As used in this clause (in accordance with 29 CFR 13.2)-

Child, "domestic partner", and "domestic violence" have the meaning given in 29 CFR 13.2.

Employee-

(1)(i) Means any person engaged in performing work on or in connection with a contract covered by Executive Order (E.O.) 13706; and

(A) Whose wages under such contract are governed by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV), or the Fair Labor Standards Act (29 U.S.C. chapter 8);

(B) Including employees who qualify for an exemption from the Fair Labor Standards Act's minimum wage and overtime provisions;

(C) Regardless of the contractual relationship alleged to exist between the individual and the employer; and

(ii) Includes any person performing work on or in connection with the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

(2)(i) An employee performs "on" a contract if the employee directly performs the specific services called for by the contract; and

(ii) An employee performs "in connection with" a contract if the employee's work activities are necessary to the performance of a contract but are not the specific services called for by the contract.

Individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship has the meaning given in 29 CFR 13.2.

Multiemployer plan means a plan to which more than one employer is required to contribute and which is maintained pursuant to one or more collective bargaining agreements between one or more employee organizations and more than one employer.

Paid sick leave means compensated absence from employment that is required by E.O. 13706 and 29 CFR Part 13.

Parent, "sexual assault", "spouse", and "stalking" have the meaning given in 29 CFR 13.2.

United States means the 50 States and the District of Columbia.

(b) *Executive Order 13706*.

(1) This contract is subject to E.O. 13706 and the regulations issued by the Secretary of Labor in 29 CFR Part 13 pursuant to the E.O.

(2) If this contract is not performed wholly within the United States, this clause only applies with respect to that part of the contract that is performed within the United States.

(c) *Paid sick leave*. The Contractor must-

(1) Permit each employee engaged in performing work on or in connection with this contract to earn not less than 1 hour of paid sick leave for every 30 hours worked;

(2) Allow accrual and use of paid sick leave as required by E.O. 13706 and 29 CFR Part 13;

(3) Comply with the accrual, use, and other requirements set forth in 29 CFR 13.5 and 13.6, which are incorporated by reference in this contract;

(4) Provide paid sick leave to all employees when due free and clear and without subsequent deduction (except as otherwise provided by 29 CFR 13.24), rebate, or kickback on any account;

(5) Provide pay and benefits for paid sick leave used no later than one pay period following the end of the regular pay period in which the paid sick leave was taken; and

(6) Be responsible for the compliance by any subcontractor with the requirements of E.O. 13706, 29 CFR Part 13, and this clause.

(d) Contractors may fulfill their obligations under E.O. 13706 and 29 CFR Part 13 jointly with other contractors through a multiemployer plan, or may fulfill their obligations through an individual fund, plan, or program (see 29 CFR 13.8).

(e) *Withholding*. The Contracting Officer must, upon his or her own action or upon written request of an authorized representative of the Department of Labor, withhold or cause to be withheld from the Contractor under this or any other Federal contract with the same Contractor, so much of the accrued payments or advances as may be considered necessary to pay employees the full amount owed to compensate for any violation of the requirements of E.O. 13706, 29 CFR Part 13, or this clause, including-

(1) Any pay and/or benefits denied or lost by reason of the violation;

(2) Other actual monetary losses sustained as a direct result of the violation; and

(3) Liquidated damages.

(f) *Payment suspension/contract termination/contractor debarment.*

(1) In the event of a failure to comply with E.O. 13706, 29 CFR Part 13, or this clause, the contracting agency may, on its own action or after authorization or by direction of the Department of Labor and written notification to the Contractor take action to cause suspension of any further payment, advance, or guarantee of funds until such violations have ceased.

(2) Any failure to comply with the requirements of this clause may be grounds for termination for default or cause.

(3) A breach of the contract clause may be grounds for debarment as a contractor and subcontractor as provided in 29 CFR 13.52.

(g) The paid sick leave required by E.O. 13706, 29 CFR Part 13, and this clause is in addition to the Contractor's obligations under the Service Contract Labor Standards statute and Wage Rate Requirements (Construction) statute, and the Contractor may not receive credit toward its prevailing wage or fringe benefit obligations under those Acts for any paid sick leave provided in satisfaction of the requirements of E.O. 13706 and 29 CFR Part 13.

(h) Nothing in E.O. 13706 or 29 CFR Part 13 shall excuse noncompliance with or supersede any applicable Federal or State law, any applicable law or municipal ordinance, or a collective bargaining agreement requiring greater paid sick leave or leave rights than those established under E.O. 13706 and 29 CFR Part 13.

(i) *Recordkeeping.*

(1) The Contractor must make and maintain, for no less than three (3) years from the completion of the work on the contract, records containing the following information for each employee, which the Contractor must make available upon request for inspection, copying, and transcription by authorized representatives of the Administrator of the Wage and Hour Division of the Department of Labor:

(i) Name, address, and social security number of each employee.

(ii) The employee's occupation(s) or classification(s).

(iii) The rate or rates of wages paid (including all pay and benefits provided).

(iv) The number of daily and weekly hours worked.

(v) Any deductions made.

(vi) The total wages paid (including all pay and benefits provided) each pay period.

(vii) A copy of notifications to employees of the amount of paid sick leave the employee has accrued, as required under 29 CFR 13.5(a)(2).

(viii) A copy of employees' requests to use paid sick leave, if in writing, or, if not in writing, any other records reflecting such employee requests.

(ix) Dates and amounts of paid sick leave taken by employees (unless the Contractor's paid time off policy satisfies the requirements of E.O. 13706 and 29 CFR Part 13 as described in 29 CFR 13.5(f)(5), leave must be designated in records as paid sick leave pursuant to E.O. 13706).

(x) A copy of any written responses to employees' requests to use paid sick leave, including explanations for any denials of such requests, as required under 29 CFR 13.5(d)(3).

(xi) Any records reflecting the certification and documentation the Contractor may require an employee to provide under 29 CFR 13.5(e), including copies of any certification or documentation provided by an employee.

(xii) Any other records showing any tracking of or calculations related to an employee's accrual or use of paid sick leave.

(xiii) The relevant contract.

(xiv) The regular pay and benefits provided to an employee for each use of paid sick leave.

(xv) Any financial payment made for unused paid sick leave upon a separation from employment intended, pursuant to 29 CFR 13.5(b)(5), to relieve the Contractor from the obligation to reinstate such paid sick leave as otherwise required by 29 CFR 13.5(b)(4).

(2)(i) If the Contractor wishes to distinguish between an employee's covered and noncovered work, the Contractor must keep records or other proof reflecting such distinctions. Only if the Contractor adequately segregates the employee's time will time spent on noncovered work be excluded from hours worked counted toward the accrual of paid sick leave. Similarly, only if the Contractor adequately segregates the employee's time may the Contractor properly refuse an employee's request to use paid sick leave on the ground that the employee was scheduled to perform noncovered work during the time he or she asked to use paid sick leave.

(ii) If the Contractor estimates covered hours worked by an employee who performs work in connection with contracts covered by the E.O. pursuant to 29 CFR 13.5(a)(1)(i) or (iii), the Contractor must keep records or other proof of the verifiable information on which such estimates are reasonably based. Only if the Contractor relies on an estimate that is reasonable and based on verifiable information will an employee's time spent in connection with noncovered work be excluded from hours worked counted toward the accrual of paid sick leave. If the Contractor estimates the amount of time an employee spends performing in connection with contracts covered by the E.O., the Contractor must permit the employee to use his or her paid sick leave during any work time for the Contractor.

(3) In the event the Contractor is not obligated by the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, or the Fair Labor Standards Act to keep records of an employee's hours worked, such as because the employee is exempt from the Fair Labor Standards Act's minimum wage and overtime requirements, and the Contractor chooses to use the assumption permitted by 29 CFR 13.5(a)(1)(iii), the Contractor is excused from the requirement in paragraph (i)(1)(iv) of this clause and 29 CFR 13.25(a)(4) to keep records of the employee's number of daily and weekly hours worked.

(4)(i) Records relating to medical histories or domestic violence, sexual assault, or stalking, created for purposes of E.O. 13706, whether of an employee or an employee's child, parent, spouse, domestic partner, or other individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship, must be maintained as confidential records in separate files/records from the usual personnel files.

(ii) If the confidentiality requirements of the Genetic Information Nondiscrimination Act of 2008 (GINA), section 503 of the Rehabilitation Act of 1973, and/or the Americans with Disabilities Act (ADA) apply to records or documents created to comply with the recordkeeping requirements in this contract clause, the records and documents must also be maintained in compliance with the confidentiality requirements of the GINA, section 503 of the Rehabilitation Act of 1973, and/or ADA as described in 29 CFR 1635.9, 41 CFR 60-741.23(d), and 29 CFR 1630.14(c)(1), respectively.

(iii) The Contractor must not disclose any documentation used to verify the need to use 3 or more consecutive days of paid sick leave for the purposes listed in 29 CFR 13.5(c)(1)(iv) (as described in 29 CFR 13.5(e)(1)(ii)) and must maintain confidentiality about any domestic abuse, sexual assault, or stalking, unless the employee consents or when disclosure is required by law.

(5) The Contractor must permit authorized representatives of the Wage and Hour Division to conduct interviews with employees at the worksite during normal working hours.

(6) Nothing in this contract clause limits or otherwise modifies the Contractor's recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, the Family and Medical Leave Act, E.O. 14026, their respective implementing regulations, or any other applicable law.

(j) Interference/discrimination.

(1) The Contractor must not in any manner interfere with an employee's accrual or use of paid sick leave as required by E.O. 13706 or 29 CFR Part 13. Interference includes, but is not limited to-

(i) Miscalculating the amount of paid sick leave an employee has accrued;

(ii) Denying or unreasonably delaying a response to a proper request to use paid sick leave;

(iii) Discouraging an employee from using paid sick leave;

(iv) Reducing an employee's accrued paid sick leave by more than the amount of such leave used;

(v) Transferring an employee to work on contracts not covered by the E.O. to prevent the accrual or use of paid sick leave;

(vi) Disclosing confidential information contained in certification or other documentation provided to verify the need to use paid sick leave; or

(vii) Making the use of paid sick leave contingent on the employee's finding a replacement worker or the fulfillment of the Contractor's operational needs.

(2) The Contractor must not discharge or in any other manner discriminate against any employee for-

(i) Using, or attempting to use, paid sick leave as provided for under E.O. 13706 and 29 CFR Part 13;

(ii) Filing any complaint, initiating any proceeding, or otherwise asserting any right or claim under E.O. 13706 and 29 CFR Part 13;

(iii) Cooperating in any investigation or testifying in any proceeding under E.O. 13706 and 29 CFR Part 13; or

(iv) Informing any other person about his or her rights under E.O. 13706 and 29 CFR Part 13.

(k) *Notice.* The Contractor must notify all employees performing work on or in connection with a contract covered by the E.O. of the paid sick leave requirements of E.O. 13706, 29 CFR Part 13, and this clause by posting a notice provided by the Department of Labor in a prominent and accessible place at the worksite so it may be readily seen by employees. Contractors that customarily post notices to employees electronically may post the notice electronically, provided such electronic posting is displayed prominently on any Web site that is maintained by the Contractor, whether external or internal, and customarily used for notices to employees about terms and conditions of employment.

(l) *Disputes concerning labor standards.* Disputes related to the application of E.O. 13706 to this contract must not be subject to the general disputes clause of the contract. Such disputes must be resolved in accordance with the procedures of the Department of Labor set forth in 29 CFR Part 13. Disputes within the meaning of this contract clause include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the Department of Labor, or the employees or their representatives.

(m) *Subcontracts.* The Contractor must insert the substance of this clause, including this paragraph (m), in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

(End of clause)

52.240-91 (DEV) Security Prohibitions and Exclusions (NOV 2025) (DEVIATION NOV 2025)

(a) *Definitions.* As used in this clause-

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means-

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means-

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act-covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)-

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use-

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following-

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that-

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means-

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency-

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

- (1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor’s employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));
- (2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing-

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act-covered foreign entities.

(1) Prohibition. The Contractor is prohibited from-

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act-covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using-

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.252-6 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VA Acquisition Regulation (VAAR). [insert regulation name] (48 CFR Chapter 8) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

852.219-75 (DEV) VA NOTICE OF LIMITATIONS ON SUBCONTRACTING-CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (NOV 2022) (DEVIATION JAN 2023)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that-

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows: [*Contracting Officer check the appropriate box below based on the predominant NAICS code assigned to the instant acquisition as set forth in FAR 19.102.*]

(i) ☒ Services. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs listed in the SBA certification database as set forth in 852.219-74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ General construction. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs listed in the SBA certification database as set forth in 852.219-74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ Special trade construction contractors. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219-73 or certified VOSBs listed in the SBA certification database as set forth in 852.219-74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification:

I hereby certify that if awarded the contract, _____ will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of _____.

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of clause)

Section 3 - Documents, Exhibits, or Attachments

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director	Division of Wage Determinations	Wage Determination No.: 2015-5535 Revision No.: 27 Date Of Last Revision: 12/03/2025

State: Washington

Area: Washington Counties of King, Snohomish

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		22.36
01012 - Accounting Clerk II		25.09
01013 - Accounting Clerk III		28.07
01020 - Administrative Assistant		39.00
01035 - Court Reporter		30.10
01041 - Customer Service Representative I		20.05
01042 - Customer Service Representative II		21.88
01043 - Customer Service Representative III		24.56
01051 - Data Entry Operator I		20.28
01052 - Data Entry Operator II		22.13
01060 - Dispatcher, Motor Vehicle		28.38
01070 - Document Preparation Clerk		21.80
01090 - Duplicating Machine Operator		21.80
01111 - General Clerk I		21.05
01112 - General Clerk II		22.98
01113 - General Clerk III		25.79
01120 - Housing Referral Assistant		28.26
01141 - Messenger Courier		22.07
01191 - Order Clerk I		21.50
01192 - Order Clerk II		23.46
01261 - Personnel Assistant (Employment) I		22.93
01262 - Personnel Assistant (Employment) II		25.65
01263 - Personnel Assistant (Employment) III		28.60
01270 - Production Control Clerk		33.14
01290 - Rental Clerk		23.34
01300 - Scheduler, Maintenance		24.46
01311 - Secretary I		24.46
01312 - Secretary II		27.36
01313 - Secretary III		30.50
01320 - Service Order Dispatcher		25.37
01410 - Supply Technician		39.00
01420 - Survey Worker		25.51
01460 - Switchboard Operator/Receptionist		21.78
01531 - Travel Clerk I		25.34
01532 - Travel Clerk II		28.45
01533 - Travel Clerk III		31.82
01611 - Word Processor I		20.58
01612 - Word Processor II		23.10
01613 - Word Processor III		25.84
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		28.82
05010 - Automotive Electrician		28.09

05040 - Automotive Glass Installer	26.89
05070 - Automotive Worker	26.89
05110 - Mobile Equipment Servicer	24.00
05130 - Motor Equipment Metal Mechanic	29.06
05160 - Motor Equipment Metal Worker	26.89
05190 - Motor Vehicle Mechanic	29.06
05220 - Motor Vehicle Mechanic Helper	22.56
05250 - Motor Vehicle Upholstery Worker	25.46
05280 - Motor Vehicle Wrecker	26.89
05310 - Painter, Automotive	28.09
05340 - Radiator Repair Specialist	26.89
05370 - Tire Repairer	21.31
05400 - Transmission Repair Specialist	29.06
07000 - Food Preparation And Service Occupations	
07010 - Baker	21.72
07041 - Cook I	24.18
07042 - Cook II	27.10
07070 - Dishwasher	18.98
07130 - Food Service Worker	20.23
07210 - Meat Cutter	27.82
07260 - Waiter/Waitress	22.11
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	28.64
09040 - Furniture Handler	17.88
09080 - Furniture Refinisher	22.58
09090 - Furniture Refinisher Helper	19.16
09110 - Furniture Repairer, Minor	20.52
09130 - Upholsterer	27.63
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	20.47
11060 - Elevator Operator	21.41
11090 - Gardener	28.16
11122 - Housekeeping Aide	21.55
11150 - Janitor	21.55
11210 - Laborer, Grounds Maintenance	23.07
11240 - Maid or Houseman	20.61
11260 - Pruner	21.35
11270 - Tractor Operator	26.47
11330 - Trail Maintenance Worker	23.07
11360 - Window Cleaner	23.28
12000 - Health Occupations	
12010 - Ambulance Driver	30.49
12011 - Breath Alcohol Technician	34.72
12012 - Certified Occupational Therapist Assistant	36.54
12015 - Certified Physical Therapist Assistant	35.69
12020 - Dental Assistant	29.27
12025 - Dental Hygienist	63.41
12030 - EKG Technician	40.38
12035 - Electroneurodiagnostic Technologist	40.38
12040 - Emergency Medical Technician	30.49
12071 - Licensed Practical Nurse I	31.04
12072 - Licensed Practical Nurse II	34.72
12073 - Licensed Practical Nurse III	38.69
12100 - Medical Assistant	28.29
12130 - Medical Laboratory Technician	35.33
12160 - Medical Record Clerk	29.14
12190 - Medical Record Technician	32.59
12195 - Medical Transcriptionist	22.98
12210 - Nuclear Medicine Technologist	61.80
12221 - Nursing Assistant I	17.61
12222 - Nursing Assistant II	19.80
12223 - Nursing Assistant III	21.60
12224 - Nursing Assistant IV	24.23
12235 - Optical Dispenser	26.47
12236 - Optical Technician	24.24

12250 - Pharmacy Technician	28.83
12280 - Phlebotomist	24.13
12305 - Radiologic Technologist	47.85
12311 - Registered Nurse I	32.13
12312 - Registered Nurse II	39.29
12313 - Registered Nurse II, Specialist	39.29
12314 - Registered Nurse III	47.54
12315 - Registered Nurse III, Anesthetist	47.54
12316 - Registered Nurse IV	57.00
12317 - Scheduler (Drug and Alcohol Testing)	43.00
12320 - Substance Abuse Treatment Counselor	31.39
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	24.86
13012 - Exhibits Specialist II	30.79
13013 - Exhibits Specialist III	37.66
13041 - Illustrator I	27.11
13042 - Illustrator II	33.60
13043 - Illustrator III	41.08
13047 - Librarian	48.47
13050 - Library Aide/Clerk	22.13
13054 - Library Information Technology Systems Administrator	43.76
13058 - Library Technician	29.25
13061 - Media Specialist I	31.59
13062 - Media Specialist II	35.33
13063 - Media Specialist III	39.38
13071 - Photographer I	21.46
13072 - Photographer II	24.00
13073 - Photographer III	29.74
13074 - Photographer IV	36.37
13075 - Photographer V	44.01
13090 - Technical Order Library Clerk	27.79
13110 - Video Teleconference Technician	36.76
14000 - Information Technology Occupations	
14041 - Computer Operator I	30.45
14042 - Computer Operator II	34.06
14043 - Computer Operator III	37.96
14044 - Computer Operator IV	42.19
14045 - Computer Operator V	46.73
14071 - Computer Programmer I	(see 1)
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	30.45
14160 - Personal Computer Support Technician	42.19
14170 - System Support Specialist	46.73
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	44.24
15020 - Aircrew Training Devices Instructor (Rated)	53.53
15030 - Air Crew Training Devices Instructor (Pilot)	64.15
15050 - Computer Based Training Specialist / Instructor	44.24
15060 - Educational Technologist	46.17
15070 - Flight Instructor (Pilot)	64.15
15080 - Graphic Artist	39.55
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	64.15
15086 - Maintenance Test Pilot, Rotary Wing	64.15
15088 - Non-Maintenance Test/Co-Pilot	64.15
15090 - Technical Instructor	36.44
15095 - Technical Instructor/Course Developer	44.57
15110 - Test Proctor	29.42
15120 - Tutor	29.42
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	23.17
16030 - Counter Attendant	23.17
16040 - Dry Cleaner	26.47
16070 - Finisher, Flatwork, Machine	23.17
16090 - Presser, Hand	23.17
16110 - Presser, Machine, Drycleaning	23.17
16130 - Presser, Machine, Shirts	23.17
16160 - Presser, Machine, Wearing Apparel, Laundry	23.17
16190 - Sewing Machine Operator	27.57
16220 - Tailor	28.67
16250 - Washer, Machine	24.27
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	43.36
19040 - Tool And Die Maker	49.12
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	25.21
21030 - Material Coordinator	33.14
21040 - Material Expediter	33.14
21050 - Material Handling Laborer	22.92
21071 - Order Filler	21.35
21080 - Production Line Worker (Food Processing)	25.21
21110 - Shipping Packer	25.00
21130 - Shipping/Receiving Clerk	25.00
21140 - Store Worker I	21.63
21150 - Stock Clerk	26.99
21210 - Tools And Parts Attendant	25.21
21410 - Warehouse Specialist	25.21
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	42.69
23019 - Aircraft Logs and Records Technician	36.23
23021 - Aircraft Mechanic I	41.35
23022 - Aircraft Mechanic II	42.69
23023 - Aircraft Mechanic III	43.93
23040 - Aircraft Mechanic Helper	32.10
23050 - Aircraft, Painter	39.97
23060 - Aircraft Servicer	36.23
23070 - Aircraft Survival Flight Equipment Technician	39.97
23080 - Aircraft Worker	38.27
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	38.27
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	41.35
23110 - Appliance Mechanic	28.86
23120 - Bicycle Repairer	25.36
23125 - Cable Splicer	62.49
23130 - Carpenter, Maintenance	36.90
23140 - Carpet Layer	30.00
23160 - Electrician, Maintenance	48.85
23181 - Electronics Technician Maintenance I	45.39
23182 - Electronics Technician Maintenance II	47.40
23183 - Electronics Technician Maintenance III	49.04
23260 - Fabric Worker	35.75
23290 - Fire Alarm System Mechanic	32.49
23310 - Fire Extinguisher Repairer	33.69
23311 - Fuel Distribution System Mechanic	46.36
23312 - Fuel Distribution System Operator	38.28
23370 - General Maintenance Worker	28.65
23380 - Ground Support Equipment Mechanic	41.35
23381 - Ground Support Equipment Servicer	36.23
23382 - Ground Support Equipment Worker	38.27
23391 - Gunsmith I	33.69
23392 - Gunsmith II	37.76
23393 - Gunsmith III	40.80
23410 - Heating, Ventilation And Air-Conditioning Mechanic	36.30

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	37.47
23430 - Heavy Equipment Mechanic	38.19
23440 - Heavy Equipment Operator	41.93
23460 - Instrument Mechanic	38.39
23465 - Laboratory/Shelter Mechanic	39.44
23470 - Laborer	22.92
23510 - Locksmith	31.32
23530 - Machinery Maintenance Mechanic	37.35
23550 - Machinist, Maintenance	35.02
23580 - Maintenance Trades Helper	23.03
23591 - Metrology Technician I	38.39
23592 - Metrology Technician II	39.64
23593 - Metrology Technician III	40.80
23640 - Millwright	42.31
23710 - Office Appliance Repairer	28.49
23760 - Painter, Maintenance	28.49
23790 - Pipefitter, Maintenance	41.90
23810 - Plumber, Maintenance	40.50
23820 - Pneudraulic Systems Mechanic	40.80
23850 - Rigger	37.11
23870 - Scale Mechanic	37.76
23890 - Sheet-Metal Worker, Maintenance	49.36
23910 - Small Engine Mechanic	26.57
23931 - Telecommunications Mechanic I	37.12
23932 - Telecommunications Mechanic II	38.32
23950 - Telephone Lineman	38.80
23960 - Welder, Combination, Maintenance	31.01
23965 - Well Driller	38.01
23970 - Woodcraft Worker	40.80
23980 - Woodworker	33.69
24000 - Personal Needs Occupations	
24550 - Case Manager	25.40
24570 - Child Care Attendant	19.32
24580 - Child Care Center Clerk	24.08
24610 - Chore Aide	22.31
24620 - Family Readiness And Support Services Coordinator	25.40
24630 - Homemaker	25.40
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	45.68
25040 - Sewage Plant Operator	42.52
25070 - Stationary Engineer	45.68
25190 - Ventilation Equipment Tender	35.46
25210 - Water Treatment Plant Operator	42.52
27000 - Protective Service Occupations	
27004 - Alarm Monitor	38.00
27007 - Baggage Inspector	20.80
27008 - Corrections Officer	38.60
27010 - Court Security Officer	43.87
27030 - Detection Dog Handler	23.27
27040 - Detention Officer	38.60
27070 - Firefighter	49.14
27101 - Guard I	20.80
27102 - Guard II	23.27
27131 - Police Officer I	49.40
27132 - Police Officer II	54.90
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	23.10
28042 - Carnival Equipment Repairer	24.58
28043 - Carnival Worker	18.64
28210 - Gate Attendant/Gate Tender	26.59
28310 - Lifeguard	19.13
28350 - Park Attendant (Aide)	29.75
28510 - Recreation Aide/Health Facility Attendant	21.71

28515 - Recreation Specialist	36.84
28630 - Sports Official	23.69
28690 - Swimming Pool Operator	27.54
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	46.74
29020 - Hatch Tender	46.74
29030 - Line Handler	46.74
29041 - Stevedore I	44.25
29042 - Stevedore II	48.80
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	51.79
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	35.71
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	39.32
30021 - Archeological Technician I	22.27
30022 - Archeological Technician II	24.91
30023 - Archeological Technician III	30.86
30030 - Cartographic Technician	30.86
30040 - Civil Engineering Technician	40.06
30051 - Cryogenic Technician I	32.83
30052 - Cryogenic Technician II	36.25
30061 - Drafter/CAD Operator I	22.27
30062 - Drafter/CAD Operator II	24.91
30063 - Drafter/CAD Operator III	27.78
30064 - Drafter/CAD Operator IV	34.17
30081 - Engineering Technician I	20.07
30082 - Engineering Technician II	22.53
30083 - Engineering Technician III	25.20
30084 - Engineering Technician IV	31.22
30085 - Engineering Technician V	38.19
30086 - Engineering Technician VI	46.21
30090 - Environmental Technician	28.91
30095 - Evidence Control Specialist	29.64
30210 - Laboratory Technician	27.78
30221 - Latent Fingerprint Technician I	35.96
30222 - Latent Fingerprint Technician II	39.71
30240 - Mathematical Technician	37.35
30361 - Paralegal/Legal Assistant I	25.05
30362 - Paralegal/Legal Assistant II	31.04
30363 - Paralegal/Legal Assistant III	37.97
30364 - Paralegal/Legal Assistant IV	45.93
30375 - Petroleum Supply Specialist	36.25
30390 - Photo-Optics Technician	30.86
30395 - Radiation Control Technician	36.25
30461 - Technical Writer I	33.56
30462 - Technical Writer II	41.05
30463 - Technical Writer III	49.66
30491 - Unexploded Ordnance (UXO) Technician I	32.91
30492 - Unexploded Ordnance (UXO) Technician II	39.82
30493 - Unexploded Ordnance (UXO) Technician III	47.73
30494 - Unexploded (UXO) Safety Escort	32.91
30495 - Unexploded (UXO) Sweep Personnel	32.91
30501 - Weather Forecaster I	34.17
30502 - Weather Forecaster II	41.57
30620 - Weather Observer, Combined Upper Air Or Surface Programs (see 2)	26.67
30621 - Weather Observer, Senior (see 2)	29.64
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	39.82
31020 - Bus Aide	30.22
31030 - Bus Driver	39.13
31043 - Driver Courier	21.79
31260 - Parking and Lot Attendant	20.07
31290 - Shuttle Bus Driver	21.85
31310 - Taxi Driver	18.89
31361 - Truckdriver, Light	23.18

31362 - Truckdriver, Medium	24.59
31363 - Truckdriver, Heavy	33.31
31364 - Truckdriver, Tractor-Trailer	33.31
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	19.41
99030 - Cashier	18.93
99050 - Desk Clerk	20.97
99095 - Embalmer	30.25
99130 - Flight Follower	32.91
99251 - Laboratory Animal Caretaker I	21.87
99252 - Laboratory Animal Caretaker II	23.27
99260 - Marketing Analyst	49.23
99310 - Mortician	30.39
99410 - Pest Controller	28.20
99510 - Photofinishing Worker	30.36
99710 - Recycling Laborer	40.15
99711 - Recycling Specialist	46.06
99730 - Refuse Collector	37.16
99810 - Sales Clerk	18.84
99820 - School Crossing Guard	25.17
99830 - Survey Party Chief	37.71
99831 - Surveying Aide	21.63
99832 - Surveying Technician	29.65
99840 - Vending Machine Attendant	22.31
99841 - Vending Machine Repairer	26.32
99842 - Vending Machine Repairer Helper	22.31

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

Section 4 - Solicitation Provisions

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov/browse/index/far (FAR)

www.va.gov/oal/library/vaar/index.asp (VAAR)

[Insert one or more Internet addresses]

(End of provision)

Provision	Title	Fill-ins
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation (Jan 2017)	
52.204-7 (DEV)	System for Award Management - Registration (NOV 2024) (DEVIATION NOV 2025)	
52.212-1 (DEV)	Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023) (DEVIATION AUG 2025)	
52.217-5 (DEV)	Evaluation of Options (JUL 1990) (DEVIATION NOV 2025)	

52.252-5 Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any VA Acquisition Regulation (VAAR) *[insert regulation name]* (48 CFR Chapter 8) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008)

The following provisions or clauses incorporated by reference in this solicitation must be completed by the offeror or prospective contractor and submitted with the quotation or offer. Copies of these provisions or clauses are available on the Internet at the web sites provided in the provision at FAR 52.252-1, Solicitation Provisions Incorporated by Reference, or the clause at FAR 52.252-2, Clauses Incorporated by Reference. Copies may also be obtained from the contracting officer.

[Contracting officer shall list all FAR and 48 CFR Chapter 8 (VAAR) provisions and clauses incorporated by reference that must be completed by the offeror or prospective contractor and submitted with the quotation or offer.]

(End of provision)